

## The Parliament (2)

\*The Upper House of the Parliament is also known as the Rajya Sabha. It is also known as the '**Council of States**'. \*The Maximum strength of the Rajya Sabha is fixed at **250**. According to **Article 80**, the Rajya Sabha consists of **238** members from the states and Union Territories (elected indirectly) and **12** other members are nominated by the President from amongst the persons having special knowledge or practical experience in the field of **literature, science, art and social service**. \*Representatives of each state shall be elected by the elected members of the legislative assembly of the state in accordance with the system of proportional representation by means of the single transferrable vote. \*Only 3 union territories (Delhi, Puducherry and Jammu and Kashmir) out of 8 have representatives in Rajya Sabha. \*Rajya Sabha is a **Permanent house**. Hence it is not subjected to dissolution. \*1/3rd members of the Rajya Sabha retire at the end of every second year. \*The term of its members is **6 years**. \*A Person to be elected as a member of Rajya Sabha must fulfil two criterias- (1) he must be a citizen of India and (2) he must not be less than 30 years of age. \*The Vice-President of India is the **ex-officio chairman of the Council of States/Upper House of Parliament**. \*When Vice-President acts as the President he shall not be entitled to get the salary and allowances of the chairman of Rajya Sabha. For this period he receives salary and allowances of the President. \*Rajya Sabha elects a deputy chairman from amongst its members. \*The Deputy Chairman gives his resignation in writing to the **Chairman**. \*Rajya Sabha has the power to remove the Deputy Chairman from his post, by a resolution passed by the majority of members of Rajya Sabha. \*When the post of Chairman is vacant, the deputy chairman will perform the duties of the chairman. \*While presiding over the Rajya Sabha, the Deputy chairman can't vote in general, he can only exercise a casting vote in case of a tie. \*When a resolution to remove the Vice-President from his office is under consideration, he will not be presiding as the chairman and when a resolution of removal of the Deputy Chairman is under consideration, he will not be presiding as the Deputy Chairman. \*The representation of states in Rajya Sabha is given in proportion to their population. \*For a quorum, there must be the presence of one-tenth of the total number of members in the Rajya Sabha. \***The Representation of People Act 1951 (through an amendment in 2003)** made a provision that any

person can contest from anywhere for Rajya Sabha even if he is a resident of any other state. \*The **4th schedule** of the Indian Constitution enumerates the allocation of Rajya Sabha seats for states and union territories. \***Article 249** states that if the Rajya Sabha passes a resolution with a 2/3 majority, the Parliament can make laws in the national interest regarding the subjects of the state list. \*It is valid for a period of 1 year, but it can be extended by passing a resolution. \***Article 250** empowers the Parliament to legislate with respect to any matter in the state list if the proclamation of emergency is in operation but, six months after the emergency ceases to operate, it automatically expires. \***Article 252** empowers the Parliament to legislate for two or more states by consent and adoption of such legislation by any other state. \*According to **Article 253**, Parliament has the power to make any law for the whole or part of the territory of India for implementing international agreements or conventions with any other country or any decision made at any international conference.

### 1. What is the fixed strength of Rajya Sabha?

- (a) 220
- (b) 230
- (c) 210
- (d) 250

M.P.P.C.S. (Pre) 2010

Ans. (d)

Article 80 of the Constitution deals with the composition of the Council of States. According to this Article, there shall be -

- (i) Twelve members nominated by the President;
- (ii) Not more than 238 representatives of the States and Union Territories. Total strength is thus 250. At present, there are total 245 members in the Council of States out of which 225 representatives are from State Legislative Assemblies, and 8 are from Union Territories Legislative Assemblies (Delhi-3, Puducherry-1, Jammu and Kashmir-4) and the remaining 12 are nominated by the President.

### 2. The representation in the Rajya Sabha includes :

- (a) members nominated by the President of India
- (b) members directly elected by citizens
- (c) members indirectly elected by citizens through their representatives
- (d) More than one of the above
- (e) None of the above

68<sup>th</sup> B.P.S.C. (Pre) 2022

Ans. (d)

According to Article 80. The Rajya Sabha should consist of not more than 250 members - 238 members representing the States and Union Territories, and 12 members nominated by the President. Rajya Sabha is a permanent body and is not subject to dissolution. However, one-third of the members retire every second year, and are replaced by newly elected members. Each member is elected for a term of six years. The Vice President of India is the ex-officio Chairman of the Rajya Sabha. The House also elects a Deputy Chairman from among its members. Besides, there is also a panel of "Vice Chairmen" in the Rajya Sabha. The senior-most minister, who is a member of the Rajya Sabha, is appointed by the Prime Minister as the Leader of the House.

**3. The Rajya Sabha consists of-**

- (a) 280 members of which 20 members are nominated by the President of India.
- (b) 275 members of which 18 members are nominated by the President of India.
- (c) 250 members of which 12 members are nominated by the President of India.
- (d) 252 members of which 12 members are nominated by the President of India.

**53<sup>rd</sup> to 55<sup>th</sup> B.P.S.C. (Pre) 2011**

**Ans. (c)**

Article 80 of the Constitution deals with the composition of the Council of States. It states that, there shall not be more than 238 representatives of the States and the Union Territories. The Council of the States shall consist of 12 members nominated by the President.

**4. The Representation of States in Council of States is based on –**

- (a) Equal for all States
- (b) Ratio of their Population
- (c) Ratio of their Area
- (d) Ratio of their Revenue

**38<sup>th</sup> B.P.S.C. (Pre) 1992**

**Ans. (b)**

The representation of States in the Council of States is based on the ratio of the State's population. The number of seats or representatives of a State in the Rajya Sabha has been determined by the Fourth Schedule of the Constitution.

**5. Consider the following statements:**

- 1. Union Territories are not represented in the Rajya Sabha.
- 2. It is within the purview of the Chief Election Commissioner to adjudicate the election disputes.
- 3. According to the Constitution of India, the Parliament consist of the Lok Sabha and the Rajya Sabha only.

**Which of the statement(s) given above is/are correct?**

- (a) Only 1
- (b) 2 and 3
- (c) 1 and 3
- (d) None of these

**I.A.S. (Pre) 2012**

**Ans. (d)**

The Union Territories are represented in the Council of State. There are 3 seats for Delhi, 1 seat for Puducherry and 4 seats for Jammu & Kashmir in the Council of States. Election disputes are adjudicated by the Judiciary in the mode of the election petition. According to Article 79, the Parliament consists of the President, the House of the People and the Council of States. Thus, all the statements are wrong.

**6. The members of Council of States are elected by -**

- (a) Members of Legislative Assembly of States.
- (b) Members of Legislative Council of States.
- (c) Members of both Legislative Assembly and Council.
- (d) Members of Municipalities and Gram Panchayat.

**U.P.P.C.S. (Pre) 1990**

**Ans. (a)**

According to Article 80(4) of the Constitution, the representatives of each State in the Council of States shall be elected by the elected members of the Legislative Assembly of the State in accordance with the proportional representation by means of the Single Transferable Vote.

**7. Which of the following are correct about the Rajya Sabha?**

- 1. It is not a subject to dissolution.
- 2. It has a term of five years.
- 3. One-third of its members retire after every two years
- 4. Its member shall not be less than 25 years of age.

**Select the correct answer using the code given below:**

**Code :**

- (a) 1, 2 and 3
- (b) 2, 3 and 4
- (c) 1 and 3
- (d) 2 and 4

**U.P.P.C.S. (Pre) 2014**

**Ans. (c)**

The statements (2) and (4) are wrong. The Council of States shall not be the subject to dissolution, but as nearly as possible, one-third of the members thereof shall retire as soon as may be on the expiration of every second year in accordance with the Provisions made in that behalf by the Parliament by law. The tenure of its members is 6 years. The minimum age to be a member of this House is 30 years.

8. Given below are two statements, one is labelled as Assertion (A) and the other as Reason (R).

**Assertion (A) : The Council of States is not subject to dissolution.**

**Reason (R) : (As nearly as possible) 1/3 of its members retired on the expiration of every second year.**

**Choose the correct answer from the code given below.**

**Code :**

- (a) Both (A) and (R) are true and (R) is the correct explanation of (A).
- (b) Both (A) and (R) are true but (R) is not the correct explanation of (A).
- (c) (A) is true but (R) is false.
- (d) (A) is false but (R) is true.

**U.P. R.O/A.R.O. (Mains) 2016**

**Ans. (a)**

See the explanation of the above question.

9. What is the tenure of a member of Council of State?

- (a) 3 years
- (b) 5 years
- (c) 6 years
- (d) 2 years

**U.P.P.C.S. (Pre) 1992**

**Ans. (c)**

According to Article 83(1), the Council of States is the Upper House or Permanent House of the Parliament. It is not subject to dissolution but, as nearly as possible, one-third of the members thereof shall retire as soon as possible, at the expiration of every second year. The tenure of the members of the Council of States is 6 years.

10. Which of the following statements is correct regarding the Rajya Sabha?

- (a) One-third of its members retire every two years.
- (b) One-half of its members retire every two years.
- (c) One-half of its members retire every three years.
- (d) One-third of its members retire every three years.

**M.P.P.C.S. (Pre) 1994**

**Ans. (a)**

Rajya Sabha is a Permanent House and is not subject to dissolution as per Article 83(1) of the Constitution of India. But as nearly as possible, one-third of its members retire every two years.

11. Member of Rajya Sabha is elected-

- (a) For four years
- (b) For five years
- (c) For six years
- (d) For life long

**42<sup>nd</sup> B.P.S.C. (Pre) 1997**

**Ans. (c)**

See the explanation of the above question.

12. Rajya Sabha is called Permanent House because –

- (a) All members are lifelong
- (b) It cannot be dissolved
- (c) Some members retire after every two years
- (d) Both (b) and (c) are true

**41<sup>st</sup> B.P.S.C. (Pre) 1996**

**Ans. (b)**

See the explanation of the above question.

13. According to our Constitution, the Rajya-Sabha.

- (a) Is dissolved once in two years.
- (b) Is dissolved every five years.
- (c) Is dissolved every six years.
- (d) Is not subject to dissolution.

**48<sup>th</sup> to 52<sup>nd</sup> B.P.S.C. (Pre) 2008**

**Ans. (d)**

See the explanation of the above question.

14. Right to dissolve the Rajya Sabha is vested in –

- (a) President
- (b) Vice-President
- (c) Supreme Court
- (d) None of the above

**39<sup>th</sup> B.P.S.C. (Pre) 1995**

**Ans. (d)**

See the explanation of the above question.

15. Which one of the following statements about Rajya Sabha is correct?

- (a) It is not subject to dissolution.
- (b) Its members are chosen by direct election from territorial constituencies in the States.
- (c) It is required to choose, as soon as may be a member of the Rajya Sabha to be the Chairman thereof.
- (d) The Attorney General of India does not have the right to speak in Rajya Sabha.

**U.P.P.C.S. (Mains) 2011**

**Ans. (a)**

Only the first statement is correct. Its members are elected by the elected members of the Legislative Assemblies [Art. 80 (4)]. The tenure of the Members of the Council of States is 6 years, and 1/3rd members retire after every 2 years. The Council of States shall not be subject to dissolution. The Vice-President of India is the ex-officio chairman of the Council of States, and the Attorney General of India has the right to speak in both the Houses of the Parliament.

**16. How is Rajya Sabha dissolved?**

- (a) At the end of Chairman's tenure
- (b) President dissolves after 5 years
- (c) Dissolves with Lok Sabha automatically
- (d) None of the above

**M.P.P.C.S. (Pre) 2010**

**Ans. (d)**

See the explanation of the above question.

**17. The Rajya Sabha can be dissolved by –**

- (a) The President
- (b) The Prime Minister
- (c) The Council of Ministers
- (d) None of above

**U.P.P.C.S. (Mains) 2012**

**Ans. (d)**

See the explanation of the above question.

**18. The number of members nominated by the President in Rajya Sabha is–**

- (a) 10
- (b) 15
- (c) 12
- (d) 20

**39<sup>th</sup> B.P.S.C. (Pre) 1996**

**Ans. (c)**

According to Article 80, the President may nominate 12 persons in the Rajya Sabha belonging to the areas of Literature, Science, Art and Social Services.

**19. President may nominate in Council of States total -**

- (a) 10 Members
- (b) 2 Members
- (c) 15 Members
- (d) 12 Members

**U.P. U.D.A./L.D.A. (Pre) 2006**

**Ans. (d)**

See the explanation of the above question.

**20. Consider the following statements with respect to qualification to become the member of Rajya Sabha and select the correct answer from the code given below:**

- (1) Should be at least 30 years of age
- (2) Should be registered as a voter on the list of voters in the state from which the candidate is to be elected
- (3) Should not hold office of profit under the state

**Code :**

- (a) (1) and (2) are correct
- (b) (1) and (3) are correct
- (c) (2) and (3) are correct
- (d) (1), (2) and (3) are correct

**M.P.P.C.S. (Pre) 2008**

**Ans. (b)**

The above-mentioned statement (1) and (3) are correct, but statement (2) is wrong. Prior to 6 April, 2003 it was necessary that a candidate of Rajya Sabha must be enrolled in the voter list of that State from which he/she is to be elected. But later in 2003, an Amendment was made in the Representation of People Act, and this requirement was removed.

**21. The minimum age required to be a candidate for Council of States is -**

- (a) 25 Year
- (b) 30 Year
- (c) 32 Year
- (d) 35 Year

**U.P. U.D.A./L.D.A. (Pre) 2006**

**Ans. (b)**

The minimum age required for a person to be a candidate for the election to the Council of States is 30 years.

**22. The first actress to be nominated to Rajya Sabha.**

- (a) Jayalalitha
- (b) Nargis Dutt
- (c) Vijayanthimala
- (d) Devika Rani

**M.P.P.C.S. (Pre) 1999**

**Ans. (b)**

Nargis Dutt was the first Indian actress nominated to the Rajya Sabha in 1980. Her tenure was from 3 April, 1980 to 3 May, 1981. Vijayanthimala Bali was nominated to the Rajya Sabha from 27 August, 1993 to 26 August, 1999. Jayalalitha was a Rajya Sabha member from 3 April, 1984 to 28 January, 1989. Devika Rani Chaudhari was the first Indian actress to receive a Dada Saheb Phalke Award in 1969.

**23. Which one of the following statements is not correct regarding the power of the Parliament to legislate on a matter in the State List?**

- (a) The Rajya Sabha has to declare that it would be necessary in the national interest

- (b) A resolution has to be passed by Rajya Sabha by not less than two-third of the members present and voting.
- (c) The legislation could be for the whole or any part of the Country.
- (d) Only the Rajya Sabha can make laws with respect to a matter in the State list in the national interest.

**U.P.P.C.S. (Mains) 2011**

**Ans. (d)**

Statement (d) is incorrect. According to Article 249, the Parliament may legislate on any subject enumerated in the State List in the National interest. To enable Parliament to make such a law, the Council of States must have passed a resolution to that effect supported by two-thirds of its members present and voting. Such a law must be necessary or expedient in the National interest. Law made under Article 249 by Parliament may operate over the whole or any part of the territory of India.

**24. The Parliament of India acquires the power to legislate on any item in the State List in the national interest if a resolution to that effect is passed by the –**

- (a) Lok Sabha by a simple majority of its total membership
- (b) Lok Sabha by a majority of not less than two-third of its total membership
- (c) Rajya Sabha by a simple majority of its total membership
- (d) Rajya Sabha by a majority of not less than two-third of its members present and voting

**I.A.S. (Pre) 2016**

**Ans. (d)**

See the explanation of the above question.

**25. Under which Article of the Indian Constitution, can the Rajya Sabha authorize the Parliament to legislate on a State subject by 2/3<sup>rd</sup> majority?**

- (a) Article 249
- (b) Article 243
- (c) Article 259
- (d) Article 250

**Jharkhand P.C.S. (Pre) 2023**

**Ans. (a)**

See the explanation of the above question.

**26. Which Article of the Indian Constitution empowers the Parliament to legislate on a subject of state list?**

- (a) Art. 115
- (b) Art. 117
- (c) Art. 240
- (d) Art. 249

**U.P. P.C.S. (Mains) 2017**

**U.P.P.C.S. (Mains) 2012**

**Ans. (d)**

See the explanation of the above question.

**27. Consider the following statements :**

1. The Rajya Sabha has no power either to reject or to amend a Money Bill.
2. The Rajya Sabha cannot vote on the Demands for Grants.
3. The Rajya Sabha cannot discuss the Annual Financial Statements.

**Which of the statements given above is/are correct?**

- (a) 1 only
- (b) 1 and 2 only
- (c) 2 and 3 only
- (d) 1, 2 and 3

**I.A.S. (Pre) 2015**

**Ans. (b)**

According to Article 109 of the Indian Constitution, a Money Bill shall not be introduced in the Council of States. After the Money Bill has been passed by the House of People, it shall be transmitted to the Council of States for its recommendation and the Council of States shall, within a period of 14 days from the date of its receipt of the Bill, return the Bill to the House of People with its recommendation and the House of People may thereupon either accept or reject all or any of the recommendation of the Council of States. So the Rajya Sabha has no power either to reject or amend the Bill. According to Article 113(2) of the Indian Constitution, estimates are submitted in the form of Demands for grants to the House of People and only the House of People has the power to assent or refuse to assent. Rajya Sabha cannot vote on the Demand for Grants. So the statement 1 and 2 are correct, and statement 3 is wrong. The Rajya Sabha can discuss the Annual Financial Statement but it has no power to vote on the same.

**28. Consider the followings :**

**Assertion (A) :** Recommendations of the Rajya Sabha, after a Money Bill is passed by the Lok Sabha and transmitted to the Rajya Sabha, have to be accepted by the Lok Sabha within 14 days from the receipt of recommendations and then get them incorporated in the Bill.

**Reason (R) :** Money Bill cannot be introduced in the Rajya Sabha.

**Select the correct answer from the codes given below:**

**Codes :**

- (a) Both (A) and (R) are true and (R) is the correct explanation of (A).
- (b) Both (A) and (R) are true but (R) is not the correct explanation of (A).



(c) (A) is true but (R) is false.

(d) (A) is false but (R) is true.

**U.P. P.C.S. (Mains) 2017**

**Ans. (d)**

See the explanation of the above question.

**29. Which of the following Bills can NOT be first introduced in Rajya Sabha?**

- (a) Ordinary Bill
- (b) Constitutional Amendment Bill
- (c) State Reorganisation Bill
- (d) Money Bill

**U.P.P.C.S. (Pre) 2021**

**Ans. (d)**

A Bill may be introduced in either House of Parliament. However, a Money Bill can not be introduced in Rajya Sabha it can only be introduced in Lok Sabha with the prior recommendation of the President for its introduction in Lok Sabha.

**30. What will follow if money bill is substantially amended by Rajya Sabha?**

- (a) Lok Sabha may still proceed with the bill accepting or not accepting the recommendations of Rajya Sabha.
- (b) Lok Sabha cannot consider the bill further.
- (c) Lok Sabha may send the bill to Rajya Sabha for reconsideration.
- (d) President may call a joint sitting for passing the bill.

**I.A.S. (Pre) 2013**

**Ans. (a)**

According to the Article 109(2), after a Money Bill has been passed by the House of the People, it shall be transmitted to the Council of States for its recommendations and the Council of State may return within 14 days of its receipt to the House of People, which may either accept or reject all or any of the recommendations of the Council of States.

**31. Which of the following are exclusive powers of Lok Sabha in comparison to the Rajya Sabha?**

- I. A Money/Finance Bill can be introduced only in the House of the People.
- II. Regarding the rejection or amendment of Money Bill.
- III. The accountability of Council of Ministers.
- IV. Concerning the creation of one or more All India Services.

**Select the correct answer from the code given below:**

**Code :**

- (a) I, II, III, IV
- (b) I, II, III
- (c) I, III, IV
- (d) II, III, IV

**U.P.P.C.S. (Spl) (Mains) 2004**

**Ans. (b)**

The Lok Sabha, in comparison to the Rajya Sabha, has exclusive powers in regard to the introduction of a Money bill, its rejection and Amendment as provided in (Art. 109). The Accountability of the Council of Ministers is to the House of People as provided in Article 75(3), whereas the Rajya Sabha has exclusive powers with regard to the creation of one or more All India Services (Art. 312).

**32. Which of the following is/are the exclusive power (s) of Lok Sabha?**

- 1. To ratify the declaration of Emergency
- 2. To pass a motion of no-confidence against the Council of Ministers
- 3. To impeach the President of India

**Select the correct answer using the code given below:**

- (a) 1 and 2
- (b) 2 only
- (c) 1 and 3
- (d) 3 only

**I.A.S. (Pre) 2022**

**Ans. (b)**

Under Article 352, the President can declare a National Emergency when the security of India or a part of it, is threatened by war, external aggression or armed rebellion. The proclamation of emergency must be approved by both houses of parliament within one month from date of its issue. Thus, the power to ratify the declaration of emergency is not the exclusive power of the Lok Sabha. As per Article 75(3), the Council of Ministers is collectively responsible to the Lok Sabha. Thus existence of the Council of Ministers depends on the confidence of the Lok Sabha. Thus statement (2) is correct. As per Article 61(1), when a president is to be impeached for violation of the Constitution, the charge shall be preferred by either House of Parliament. Thus to impeach the president of India is not the exclusive power of Lok Sabha.

**33. Which of the following special powers has been conferred on the Rajya Sabha by the Constitution of India?**

- (a) To change the existing territory of a State and to change the name of a State.
- (b) To pass a resolution empowering the Parliament to make laws in the State List and to create one or more All India Services.

- (c) To amend the election procedure of the President and to determine the pension of the President after his/her retirement.
- (d) To determine the functions of the Election Commission and to determine the number of Election Commissioners.

**I.A.S. (Pre) 2012**

**Ans. (b)**

The Council of States has been conferred with special power under Article 249 of the Indian Constitution to declare by resolution supported by not less than 2/3rd members present and voting that it is necessary or expedient in the national interest that Parliament should make law on a subject enumerated in the State list. Like this, Article 312 of the Indian Constitution provides that the Council of States can declare, by resolution supported by not less than 2/3rd of the members present and voting, that it is necessary and expedient in the national interest to create one or more All India Services, including all- India Judicial Services.

**34. The Council of States has exclusive powers in relation to which of the following?**

- (a) To initiate proceedings for the removal of the President
- (b) To initiate proceedings for the removal of a judges of the Supreme Court
- (c) To recommend creation of a new All India Service
- (d) None of the above

**U.P.P.C.S. (Pre) 2018**

**Ans. (c)**

The Exclusive powers of the Council of States are-  
 (a) The Council of States can authorise the Parliament to make a law on a subject enumerated in the State list (Art. 249)  
 If the Council of States has declared by resolution supported by not less than two-thirds of the members present and voting that it is necessary or expedient in the national interest so to do, parliament May by law provide for the creation of one or more all India Services Common to the Union and the states.

**35. Which one of the following comes under the exclusive power of the Council of States :**

- (a) Creation of new All India Services.
- (b) Election of Vice-President of India during casual vacancy
- (c) Abolition of Legislative Council of any State
- (d) Removal of its chairman

**U.P.P.C.S. (Pre) 1997**

**Ans. (a)**

The creation of new All India Services comes under the exclusive power of the Council of States. One or more All India Services can be created by the resolution of the Council of States supported by not less than two-thirds of the members present and voting. The creation of All India Services is provided in Article 312 of the Constitution.

**36. Rajya Sabha has equal powers with Lok Sabha in :**

- (a) the matter of creating new All India Services
- (b) amending the Constitution
- (c) the removal of the government
- (d) making cut motions

**I.A.S. (Pre) 2020**

**Ans. (b)**

Rajya Sabha has equal powers with Lok Sabha in the amendment of the Constitution. According to the Article 368 (2) of the Constitution, an amendment of this Constitution may be initiated only by the introduction of a Bill for the purpose in either house of Parliament, and when the Bill is passed in each house by a majority of the total membership of that house and by a majority of not less than two-thirds of the members of that house present and voting (it shall be presented to the President who shall give his assent to the bill and thereupon) the Constitution shall stand amended in accordance with the terms of the Bill.

**37. What is the consequence of the failure of Government in Rajya Sabha?**

- (a) Prime Minister gives his resignation
- (b) Parliament will dissolve
- (c) The operation of President Rule.
- (d) None of the above

**M.P.P.C.S. (Pre) 1990**

**Ans. (d)**

Whenever the Government or the Council of Ministers fail in Rajya Sabha, none of the given consequences occur because, according to Article 75(3); the Council of Ministers is collectively responsible to the Lok Sabha (House of the People).

**38. Which one of the following statements correctly describes the Fourth Schedule of the Constitution of India?**

- (a) It lists the distribution of powers between the Union and the states.
- (b) It contains the languages listed in the Constitution.
- (c) It contains provisions for the administration of Tribal areas.
- (d) It allocates seats in the Council of States.

**I.A.S. (Pre) 2001**

**Ans. (d)**

The Fourth Schedule allocates seats for each State of India in the Council of States. The 7<sup>th</sup> Schedule deals with the allocation of powers and functions between the Union and the State. Under the 8<sup>th</sup> Schedule, a list of 22 languages of India is recognized by the Constitution. The 5<sup>th</sup> and 6<sup>th</sup> Schedules give provisions for administration and control of the Scheduled Areas and Tribes.

**39. Which one of the following pairs of states has equal representation in the Council of States:**

- (a) Andhra Pradesh and Maharashtra
- (b) Andhra Pradesh and Tamil Nadu
- (c) Gujarat and Rajasthan
- (d) Maharashtra and Tamil Nadu

**U.P.P.C.S. (Pre) 1999**

**Ans. (\*)**

At the time when the question was asked, Andhra Pradesh and Tamil Nadu both the States had 18 seats in the Rajya Sabha, but after the formation of Telangana State in June 2014, there are 11 seats in Andhra Pradesh and 7 in Telangana. Maharashtra has 19 seats, and Gujarat has 11 seats in Rajya Sabha at present.

**40. Seats allocated to Uttar Pradesh in the Council of States are the total number of seats allocated to:**

- (a) Andhra Pradesh and Madhya Pradesh
- (b) Andhra Pradesh and Tamil Nadu
- (c) Bihar and Gujarat
- (d) Maharashtra and Madhya Pradesh

**U.P.P.C.S. (Pre) 2000**

**Ans. (\*)**

At the time when the question was asked, i.e., in the year 2000, Andhra Pradesh had 18 seats, Madhya Pradesh 16 and Uttar Pradesh had 34 seats in the Rajya Sabha. Thus, the total seats of Andhra Pradesh and Madhya Pradesh ( $18+16=34$ ) were equal to the seats allotted to Uttar Pradesh (34). After the bifurcation of Uttar Pradesh in the year 2000, the seats remaining for UP are 31 and rest 3 are for Uttarakhand. Similarly, after the formation of Chhattisgarh, 5 seats were allotted to this state. In June 2014, Andhra Pradesh was bifurcated, and Telangana was formed. The seats allotted to Andhra Pradesh and Telangana are 11 and 7, respectively.

**41. Given below is a list of States along with seats allotted to them in the Council of States. Which one of them is not matched :**

- (a) Madhya Pradesh - 16
- (b) Maharashtra - 19

- (c) Tamil Nadu - 18
- (d) West Bengal - 16

**I.A.S. (Pre) 2009**

**Ans. (\*)**

There were 16 seats in Madhya Pradesh for the Council of States before the bifurcation of Madhya Pradesh, later 5 seats were allotted to Chhattisgarh. So now Madhya Pradesh has 11 seats allotted for the Council of States.

**42. Match the List-I with List-II and give correct answer by using code given below:**

| List-I<br>(States) | List-II<br>(Seats) |
|--------------------|--------------------|
| A. Andhra Pradesh  | 1. 18              |
| B. Maharashtra     | 2. 19              |
| C. Karnataka       | 3. 12              |
| D. West Bengal     | 4. 16              |

**Code :**

|     | A | B | C | D |
|-----|---|---|---|---|
| (a) | 1 | 2 | 3 | 4 |
| (b) | 2 | 1 | 3 | 4 |
| (c) | 2 | 1 | 4 | 3 |
| (d) | 4 | 2 | 3 | 1 |

**U.P.P.C.S. (Pre) 2002**

**Ans. (\*)**

At the time when this question was asked, the correct answer was option (a), but in the current context, none of the options is correct. The number of members elected to Rajya Sabha from Maharashtra, Karnataka and West Bengal are 19, 12 and 16, respectively.

Note: In June 2014, Andhra Pradesh was divided and a new state, Telangana was formed. Now, Andhra Pradesh has total 11 seats and the remaining 7 seats have been allotted to Telangana.

**43. Match the List-I with List-II and select the correct answer using the code given below the lists:**

| List-I<br>(Name of States) | List-II<br>(Seats in Rajya Sabha) |
|----------------------------|-----------------------------------|
| A. Jharkhand               | 1. 07                             |
| B. Uttarakhand             | 2. 05                             |
| C. Chhattisgarh            | 3. 03                             |
| D. Punjab                  | 4. 06                             |

**Codes:**

|     | A | B | C | D |
|-----|---|---|---|---|
| (a) | 2 | 4 | 1 | 3 |
| (b) | 1 | 2 | 3 | 4 |



- (c) 3      1      4      2  
(d) 4      3      2      1

Uttarakhand P.C.S. (Pre) 2021

Ans. (d)

| The correct matches are as follows— |   |         |  |
|-------------------------------------|---|---------|--|
| List-I                              |   | List-II |  |
| Jharkhand                           | - | 06      |  |
| Uttarakhand                         | - | 03      |  |
| Chhattisgarh                        | - | 05      |  |
| Punjab                              | - | 07      |  |

44. Match List -I with List - II and select the correct answer using the codes given below the lists.

| List -I<br>(State) | List-II<br>(Representation in Rajya Sabha) |
|--------------------|--------------------------------------------|
| A. Rajasthan       | 1.10 seats                                 |
| B. Gujarat         | 2. 7 seats                                 |
| C. Karnataka       | 3.11 seats                                 |
| D. Punjab          | 4.12 seats                                 |
| Codes              |                                            |

- |     |   |   |   |   |
|-----|---|---|---|---|
|     | A | B | C | D |
| (a) | 1 | 3 | 4 | 2 |
| (b) | 2 | 3 | 4 | 1 |
| (c) | 1 | 2 | 3 | 4 |
| (d) | 4 | 3 | 2 | 1 |

U.P.P.C.S. (Pre) 2021

Ans. (a)

| (State)   | (Representation in Rajya Sabha) |
|-----------|---------------------------------|
| Rajasthan | 10                              |
| Gujarat   | 11                              |
| Karnataka | 12                              |
| Punjab    | 7                               |

45. Match List-I with List-II and select the correct answer by using the code given below:

| List-I<br>(States) | List-II<br>(No. of members in Rajya Sabha) |
|--------------------|--------------------------------------------|
| A. Gujarat         | 1. 9                                       |
| B. Karnataka       | 2. 11                                      |
| C. Kerala          | 3. 12                                      |
| D. Odisha          | 4. 10                                      |

Code :

- |     |   |   |   |   |
|-----|---|---|---|---|
|     | A | B | C | D |
| (a) | 1 | 4 | 3 | 2 |
| (b) | 3 | 2 | 4 | 1 |

- (c) 2      3      1      4  
(d) 1      2      3      4

U.P.P.C.S. (Pre) 2017

Ans. (c)

| The match of list I with List II is as follows—          |   |                               |  |
|----------------------------------------------------------|---|-------------------------------|--|
| States                                                   |   | No. of Members in Rajya Sabha |  |
| Gujarat                                                  | - | 11                            |  |
| Karnataka                                                | - | 12                            |  |
| Kerala                                                   | - | 9                             |  |
| Odisha                                                   | - | 10                            |  |
| Note - Number of members from U.P. in Rajya Sabha is 31. |   |                               |  |

46. Arrange the following States in decreasing order of the number of seats of Rajya Sabha :

- (a) Gujarat > Karnataka > Kerala > Odisha  
(b) Karnataka > Gujarat > Kerala > Odisha  
(c) Karnataka > Gujarat > Odisha > Kerala  
(d) Gujarat > Karnataka > Odisha > Kerala

Chhattisgarh P.C.S. (Pre) 2022

Ans. (c)

| Rajya Sabha seats are as follows -                                                                |   |    |  |
|---------------------------------------------------------------------------------------------------|---|----|--|
| Karnataka                                                                                         | — | 12 |  |
| Gujarat                                                                                           | — | 11 |  |
| Odisha                                                                                            | — | 10 |  |
| Kerala                                                                                            | — | 9  |  |
| Decreasing order is : Karnataka > Gujarat > Odisha > Kerala . Hence correct answer is option (c). |   |    |  |

47. Which one of the following is not correctly matched?

| State              | Allocation of Seats in the Rajya Sabha |
|--------------------|----------------------------------------|
| (a) Andhra Pradesh | 18                                     |
| (b) Odisha         | 10                                     |
| (c) Tamil Nadu     | 18                                     |
| (d) Maharashtra    | 19                                     |

M.P. P.C.S. (Pre) 2018

Ans. (a)

|                                                                                                            |  |
|------------------------------------------------------------------------------------------------------------|--|
| Andhra Pradesh - 11 seats                                                                                  |  |
| The remaining 7 seats were transferred to the state of Telangana after its separation from Andhra Pradesh. |  |

48. Which among the following States has the lowest number of elected members in the Rajya Sabha?

- (a) Chhattisgarh      (b) Himachal Pradesh

(c) Jharkhand

(d) Jammu and Kashmir

**U.P.P.C.S. (Mains) 2010**

**U.P.P.C.S. (Mains) 2006**

**Ans. (b)**

The number of members elected to the Rajya Sabha from the given States is as follows: Himachal Pradesh-3, Jammu and Kashmir-4, Chhattisgarh-5, Jharkhand-6, Thus, the lowest number of members elected to Rajya Sabha is from Himachal Pradesh.

**49. The Union Territories get representation in –**

(a) Lok Sabha

(b) Rajya Sabha

(c) Both Houses of Parliament

(d) None of the above

**U.P.P.C.S. (Mains) 2015**

**Ans. (c)**

The Union Territories get representation in the both Houses of Parliament. Delhi has 3, Puducherry has 1 and Jammu and Kashmir has 4 members in the Rajya Sabha.

**50. Consider the following statements:**

**1. The Chairman and the Deputy Chairman of the Rajya Sabha are not the members of that House.**

**2. While the nominated members of the Both Houses of the Parliament have no voting right in the Presidential election, they have Right to Vote in the election of the Vice-President.**

**Which of the statements given above is/are correct?**

(a) Only 1

(b) Only 2

(c) Both 1 and 2

(d) Neither 1 nor 2

**I.A.S. (Pre) 2013**

**Ans. (b)**

Statement 1 is incorrect. The Chairman of Rajya Sabha is the Vice-President. However, the Deputy Chairman is a member of the Rajya Sabha and is elected from amongst them. Statement 2 is correct. The electoral college in the Presidential election consists of the elected Members of the Parliament and State Legislative Assemblies. The Vice-Presidential election, however as a part of its electoral college, consists of all the members of the Parliament, whether elected or nominated.

**51. The Chairman of Council of States (Rajya Sabha) is**

(a) Appointed by President

(b) Elected by Parliament

(c) Vice-President is ex-officio Chairman

(d) Elected by members of State Council

**U.P.U.D.A./L.D.A. (Pre) 2013**

**Ans. (c)**

Article 89(1), of the Indian Constitution, states that the Vice-President of India shall be ex-officio Chairman of Council of States. Thus option (c) is correct. The Vice-President is elected by the member of an electoral college consisting of the members of both the Houses of Parliament given under Art. 66 (1) Article 64 also states that Vice-President shall be the ex-officio Chairman of the Rajya Sabha.

**52. In which House is the presiding officer not a member of that House?**

(a) Rajya-Sabha

(b) Lok-Sabha

(c) Vidhan-Sabha

(d) Vidhan-Parishad

**48<sup>th</sup> to 52<sup>nd</sup> B.P.S.C. (Pre) 2008**

**U.P.P.C.S. (Pre) 1992**

**Ans. (a)**

The presiding officer of Rajya Sabha, i.e. the Vice-President is not a member of the House. He is elected by the members of an electoral college consisting of the members of both the Houses of Parliament.

**53. The ex-officio Chairman of the Rajya Sabha is**

(a) The Vice-President

(b) The President

(c) The Prime Minister

(d) The Speaker

**U.P.P.C.S. (Mains) 2011**

**Ans. (a)**

See the explanation of the above question.

**54. Which one of the following Houses is presided over by a non-Member ?**

(a) Lok Sabha

(b) State Legislative Assembly

(c) Rajya Sabha

(d) None of the above

**U.P. U.D.A./L.D.A. (Mains) 2010**

**Ans. (c)**

See the explanation of the above question.

**55. Which one of the following is Chairman of Rajya Sabha?**

- (a) Prime Minister
- (b) Vice-President of India
- (c) The person elected to this post/office
- (d) President of India

**U.P.P.C.S. (Pre) 1993**

**U.P.P.C.S. (Pre) 1990**

**Ans. (b)**

See the explanation of the above question

**56. Chairman of Rajya Sabha is-**

- (a) The Vice-President of India
- (b) The Chief Justice of the Supreme Court
- (c) Chief Election Commissioner
- (d) The Prime Minister of India

**42<sup>nd</sup> B.P.S.C. (Pre) 1997**

**Ans. (a)**

See the explanation of the above question

**57. Present Chairman of Rajya Sabha is -**

- (a) Meera Kumar
- (b) Najma Heptullah
- (c) Hamid Ansari
- (d) Pratibha Patil

**M.P.P.C.S. (Pre) 2010 (\*)**

**Ans. (\*)**

Since the Vice-President is the ex-officio chairman of the Rajya Sabha. Option (c) would be the correct answer when this question was asked. However, presently Vice- President Jagdeep Dhankar is the Chairman of Rajya Sabha.

**58. Identify the incorrect statement regarding Council of States (Rajya Sabha).**

- (a) Dr. S. Radhakrishnan is the only Chairman of Rajya Sabha for two consecutive terms.
- (b) For the first constitutional amendment, ratification of the Rajya Sabha was not taken.
- (c) Currently eight members are elected to Rajya Sabha from the Union Territories.
- (d) There have been three occasions, when joint sitting of Rajya Sabha and Lok Sabha was held.
- (e) Question not attempted

**Raj. P.C.S. (Pre) 2023**

**Ans. (c)**

The Council of States, the Second Chamber of the Indian Parliament, was constituted in the year 1952. However, the origin of the idea for a Second Chamber can be traced to the “Montague- Chelmsford Reform of 1919”. The Constitution First Amendment Act was enacted in 1951 at that time, the Rajya Sabha did not exist. Article 80 of the Constitution deals with the composition of the Council of States. Clause 1 of this Article provides that the maximum strength of the Rajya Sabha is 250, out of which 12 members are nominated by the President and 238 are representatives of the States and of the Union territories. The present strength, however, is 245 members, of whom 233 are representatives of the States and Union territories and 12 are nominated by the President. Currently, there are 4 members ( 3 from NCT Delhi and 1 from Puducherry) elected to the Rajya Sabha. The first Vice-President, Dr. S. Radhakrishnan, is the only Chairman of the Rajya Sabha who has been in the office for two consecutive terms from 13 May, 1952 to 12 May 1962. The Joint Sitting (Article 108) of the Indian Parliament has been called for only 3 bills: the Dowry Prohibition Bill, 1962, the Banking Service Commission (Repeal) Bill, 1978 and the Prevention of Terrorism Bill, 2002.

**59. In which year was Rajya Sabha constituted for the first time?**

- (a) 1950
- (b) 1951
- (c) 1952
- (d) 1953

**U.P.P.C.S. (Pre) 2017**

**Ans. (c)**

The Rajya Sabha, or Council of States, is the upper house of the Parliament of India. Article 80 of the Constitution lays down the maximum strength of Rajya Sabha as 250, out of which 12 members are nominated by the President. The present strength of Rajya Sabha is 245, including 12 nominated members. One-third of the members retire every two years. The Rajya Sabha was formed on 3 April, 1952.

**60. Who among the following was nominated to the Rajya Sabha by the President of India as the 12th member in the year 2024?**

- (a) Ghulam Ali
- (b) Baiyaraaja
- (c) Sudha Murty
- (d) Satnam singh Sandhu

**Ans. (c)**

In 2024 President Droupadi Murmu nominated [Article 80 (1) (a) and clause (3)] both Satnam Singh Sandhu and Sudha Murty to the Rajya Sabha. Satnam Singh Sandhu, an educationist and founder of Chandigarh University, was nominated on January 30, 2024, Sudha Murty, a philanthropist and former chairperson of Infosys Foundation, was nominated on March 8, 2024, According to reports, Sudha Murty became the 12th nominated member of the Upper House. Therefore, the correct answer is (C)Sudha Murty.